

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: November 25, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING COMPLAINANT'S MOTION TO CONFORM SUBPOENA

On November 13, 2024, Complainant Samsung Electronics America, Inc. ("SEA") filed a motion seeking to amend the subpoena to Yoon-Jai ("Mark") Lee, dated September 26, 2024, to conform the subpoena to the deposition date and location agreed to by the parties and Mr. Lee. In support of this motion, Complainant states that Mr. Lee is currently living in Sout Korea, that he does not plan on being in the United States until 2025, and that the parties agreed to the terms of the deposition, which is scheduled to be conducted via Zoom at 8:00 AM EST/10:00 PM KST. See Mot. to Amend [Dkt. 122], pp. 3-4; see also Joint Status Report [Dkt. 124], p. 1. Counsel for Respondent SM Line Corporation stated that they do not consent to the motion, but did not file an opposition.

SEA also requested that the Joint Status Report deadline, which request is now moot since the November 21, 2024 deadline has passed and the parties filed their joint status report. Conducting Mr. Lee's deposition via Zoom, and at a time convenient to the parties, minimizes travel costs for counsel and inconvenience for the witness, and so the motion will be **GRANTED**. I will return the revised subpoena to the parties separately from this order via email. The parties are further **ORDERED** to submit a Joint Status Report, no later than **December 4, 2024**, providing the status of the outstanding subpoenas and a proposed supplemental briefing schedule, if needed.

ALEX

CHINTELLA

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ALEX CHINTELLA
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Alex M. Chintella
Administrative Law Judge